

23STCV23754 23STCV23754

County: los-angeles

Division: Civil Law and Motion

Department: 731

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Case Number: 23STCV23754 Hearing Date: July 2, 2026 Dept: 731

SUPERIOR COURT OF CALIFORNIA

COUNTY OF LOS ANGELES

DEPARTMENT 731

TENTATIVE RULING

KIMBERLY GORDON, et al.

Plaintiffs,

v.

WESTWOOD BLVD. PROPERTIES,

LLC, et al.,

Defendants.

Case No:

23STCV23754

Hearing Date: July 2, 2026

Calendar Number: 4

Plaintiffs

Kimberly Gordon, Lee Quinones, and Madison Quinones move to compel the

deposition of Defendant Optimus Property Management, Inc.'s Employee Luis Montoya.

Plaintiffs'

motion to compel deposition is DENIED as moot.

Both

parties' request for sanctions is DENIED.

Background

This is habitability

action. On September 29, 2023, Plaintiffs

Kimberly Gordon, Lee Quinones, and Madison Quinones ("Plaintiffs") filed a complaint against Defendants Westwood Blvd Properties, LLC, Optimus Properties, LLC and Optimus Property Management, LLC.

On March 13, 2025,

Plaintiffs filed a First Amended Complaint ("FAC"), alleging causes of action for: (1) tortious breach of implied warranty of habitability; (2) breach of contract; (3) negligence; (4) violation of Business and Professions Code section 17200; (5) violation of LAMC section 152 et seq.; (6) violation of Los Angeles Municipal Code section 45.30; (7) violation of Civil Code section 1942.4; and (8) violation of Civil Code section 1941.1.

On

May 22, 2026, Plaintiffs filed this motion to compel Defendant Optimus' employee Luis Montoya's deposition. On June 22, 2026, Defendants filed an Opposition. No Reply has been filed.

Legal Standard

"If, after service of a deposition notice, a party to the action ... or an employee of a party, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (CCP § 2025.450, subd. (a).)

The motion must be accompanied by a good faith meet and confer declaration under section 2016.040 or, "when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (CCP § 2025.450, subd. (b)(2).)

If this motion is granted, the court shall impose a monetary sanction in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (CCP § 2025.450(g)(1).)

Discussion

Plaintiffs noticed Defendant Optimus'

Employee Luis Montoya's deposition on April 28, 2026, setting his examination for May 14, 2026. (Burton Decl., ¶ 6; Exh. 2.) On May 7, 2026, Defendants served written objections to the deposition notice. (Burton Decl., ¶ 7; Exh. 3.)

Defendants argue in opposition that the motion is moot, and sanctions are unwarranted. Defendants contend that the trial in this case was set for June 22, 2026. The discovery cutoff was May 22, 2026. Less than one month before the close of discovery, on April 28, 2026, Plaintiffs noticed 20 different depositions, including Luis Montoya. Thus, Defendants contend the Deposition Notice was procedurally and substantively defective, which Defendants objected to. However, since then the trial has been moved to March 6, 2028, with discovery open. Defendants have therefore agreed to produce Montoya.

Plaintiffs have not filed a Reply to dispute that the motion is moot. Thus, the motion is denied as moot.

Sanctions

Defendants

have provided substantial justification as to why the deposition did not proceed. Thus, Plaintiffs' request for sanctions is denied.

Defendants

seek sanctions against Plaintiffs, arguing that proceeding with a motion to compel after being advised that the relief sought has been obtained, and declining to withdraw a motion rendered moot by cooperation, constitutes a misuse of the discovery process. The Court disagrees. The motion could have been granted, if for example, Defendant filed a Reply informing the Court the parties could not agree on a date. Further, Plaintiffs' refusal to withdraw the motion may have been to reserve their rights and obtain a Court order in the event Defendants did not end up producing the employee. The Court does not find this to be a misuse of the discovery process. Thus, Defendants' request for sanctions against Plaintiffs is also denied.